

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	23CV426734	Phillip Tran et.al. vs Thi Nguyen	Plaintiff moves this court for terminating sanctions against Defendant. Plaintiff propounded discovery on Defendant. Defendant failed to provide verified answers. Defense counsel has been unable to communicate with client. Plaintiff's motion for terminating sanctions striking Defendant's answer to the complaint is GRANTED.
9:00 2	23CV428070	"Janine" Chun Lu vs. Mark Goubert, et.al.	Plaintiff moves this court for leave to amend expert witness disclosure. Plaintiff's motion is unopposed. Plaintiff's motion is GRANTED.
9:00 3	24CV44162	Tech Ky vs. Jesus Hernandez, et.al.	See below.
9:00 4	25CV458361	Cabero vs. Ford Motor Company	Defendant moves this court for summary adjudication as to Plaintiff's sixth cause of action for fraudulent inducement. Plaintiff filed no opposition to this motion. Defendant's motion is GRANTED.
9:00 5	25CV466045	Franceli Aragosa vs. Jimmy Burgos	Defendant petitions this court to compel Plaintiff to answer form interrogatories, special interrogatories, and request for production of documents. Defendant propounded form interrogatories, special interrogatories, and a request for production of documents. Plaintiff failed to answer. Plaintiff failed to object to this motion. Defendant's petition is GRANTED. Defendant's motion for monetary sanctions in the amount of \$660 is GRANTED.
9:00 6	25CV475707	Geico Insurance Company vs. Your Help by Q2 Corporaton	Plaintiff moves this court to strike answer to complaint. Defendant filed in pro per. Defendant is a corporation. Defendant filed no objection to the motion to strike answer. Plaintiff's motion to strike is GRANTED.
9:00 7	26CV49011	Zhan Ping Ye, et.al. v. Board of Directors of Summerton Condominium Association, et.al.	See below.
9:00 8	26CV501170	JG Wentworth Organization LLC as Trustee of the 2010 J.T. Trust	Trustee petitions this court for transfer of payment rights. No objections were filed. Petitions is GRANTED.
9:00 9	21CV379107	Xingchuan Pei vs Fengfei Lu	Defendant moves this court to set aside default judgment. Plaintiff used a process server to serve Defendant. Defendant claims that she did not live at the location at the time of service. Oral argument is required.
9:00 10	26CV489051	Citibank N.A. vs Jeanne Chan	See below.
9:01 1	25CV450589	Bastin Michel vs. Kumon North America	Plaintiff moves this court for compromise of minor's claim. Minor was the victim of an accident and is 9 years old. Casew will be settled without trial. Plaintiff's motion is GRANTED.
2	25CV477063	Creditors Adjustment Bureau vs. Moya and Sons	Defense counsel moves to withdraw from representation. No objection was filed. Defense counsel's motion to withdraw is GRANTED.

Calendar Line 3

Case Name: *Ky v. Hernandez, et al.*

Case No.: 24CV444162

After full consideration of the evidence, the separate statements submitted by the parties, and the authorities submitted by each party, the court makes the following rulings:

According to the allegations of the complaint, on August 2, 2022, plaintiff Tech Ky (“Plaintiff”) was swimming in a designated lane for persons with disabilities at the facility at 762 Sunnyvale-Saratoga Ave. in Sunnyvale of defendant 24 Hour Fitness USA, LLC (“24 Hour”) when he was physically and verbally attacked by defendant Jesus Ramirez Hernandez (“Hernandez”). (See complaint, ¶ 8.)

On July 29, 2024, Plaintiff filed the complaint against defendants Hernandez and 24 Hour (collectively, “Defendants”), asserting causes of action for:

- 1) Assault (against Hernandez);
- 2) Battery (against Hernandez);
- 3) Intentional infliction of emotional distress (against Hernandez);
- 4) Negligence (against all defendants);
- 5) Negligent hiring, supervision and retention (against 24 Hour); and,
- 6) Premises liability (against 24 Hour).

Defendant 24 Hour moves for summary judgment, or, in the alternative, for summary adjudication of the third, eight and ninth affirmative defenses, asserting that the complaint is barred by the express liability release in the 24 Hour membership agreement and that it does not have a duty to protect its patrons from the criminal acts of third parties.

DEFENDANT 24 HOUR’S MOTION FOR SUMMARY JUDGMENT, OR, IN THE ALTERNATIVE, FOR SUMMARY ADJUDICATION

Defendant’s burden on summary judgment and summary adjudication